UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CONCEPCION CASTELLANOS DE RENTERIA,

Plaintiff,

v.

TD BANK, NATIONAL ASSOCIATION,

Defendant.

CIVIL CASE NO. 1:26-cv-27012

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JURY TRIAL DEMANDED

CONCEPCION CASTELLANOS DE RENTERIA,
Plaintiff,
v.
TD BANK, NATIONAL ASSOCIATION,
Defendant.
/

COMPLAINT

Plaintiff Concepcion Castellanos de Renteria ("Plaintiff"), by and through her attorney, for her Complaint against Defendant TD Bank, National Association ("Defendant"), alleges, on knowledge as to its own actions, and otherwise upon information and belief, as follows:

COMPLAINT

PARTIES

1. Plaintiff Concepcion Castellanos de Renteria is a natural person and resident of Mexico.

Plaintiff Concepcion Castellanos de Renteria ("Plaintiff"), by and through her attorney, for her Complaint against Defendant TD Bank, National Association ("Defendant"), alleges, on knowledge as to its own actions, and otherwise upon information and belief, as follows:

2. Defendant TD Bank, National Association is a national bank organized and existing under the laws of the United States, with its principal place of business in Portland, Maine. Defendant conducts banking business in Florida through its Florida branches and offices.

PARTIES

JURISDICTION AND VENUE

1. Plaintiff Concepcion Castellanos de Renteria is a natural person and resident of Mexico.

3. This Court has jurisdiction over this action pursuant to 28 U.S.C. § 1332(a)(2), in that this is a civil action between a citizen of a State and a citizen of a foreign state, and the amount in controversy exceeds $75,000, exclusive of interest and costs. Additionally, Florida Statutes and the exercise of jurisdiction comport with due process because the claims arise from TD Bank's purposeful Florida contacts.

2. Defendant TD Bank, National Association is a national bank organized and existing under the laws of the United States, with its principal place of business in Portland, Maine. Defendant conducts banking business in Florida through its Florida branches and offices.

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4. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b)(3), in that Defendant is subject to personal jurisdiction in this district, and there is no other district in which the action may otherwise be brought.

FACTS

Plaintiff's Checking Account with Defendant

5. In or around 2019, Plaintiff opened a TD Convenience Checking Account ("Checking Account"), ending in -6260, with Defendant, and became a depositor thereof.

6. Plaintiff deposited from time-to-time sums of money in her Checking Account under the customary and ordinary rules and regulations applicable to banking institutions.

7. Defendant promised and agreed, among other things, to hold the deposited monies in this Checking Account for the account of Plaintiff and repay the deposited monies on the proper order of Plaintiff.

FACTS

Plaintiff's Checking Account with Defendant

8. On or around May 2026, Plaintiff, as Seller, and Samir Alberto Ibrahim Chacon ("Samir"), as Buyer, executed a contract for the sale of an apartment located in Caracas, Venezuela (the "Contract").

9. As payment pursuant to the Contract, Samir wrote two checks to Plaintiff with his business, IOM Investments LLC, as payor. See Checks, Exhibit 1.

10. The first check was for a total of $40,000.00, which was deposited into Plaintiff's Checking Account on or around May 27, 2026.

11. The second check was for a total of $71,350.00, which was deposited into Plaintiff's Checking Account on or around June 2, 2026.

3. This Court has jurisdiction over this action pursuant to 28 U.S.C. § 1332(a)(2), in that this is a civil action between a citizen of a State and a citizen of a foreign state, and the amount in controversy exceeds $75,000, exclusive of interest and costs. Additionally, Florida Statutes and the exercise of jurisdiction comport with due process because the claims arise from TD Bank's purposeful Florida contacts.

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6. Plaintiff deposited from time-to-time sums of money in her Checking Account under the customary and ordinary rules and regulations applicable to banking institutions.

7. Defendant promised and agreed, among other things, to hold the deposited monies in this Checking Account for the account of Plaintiff and repay the deposited monies on the proper order of Plaintiff.

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9. As payment pursuant to the Contract, Samir wrote two checks to Plaintiff with his business, IOM Investments LLC, as payor. See Checks, Exhibit 1.

12. On or around June 3, 2026, Defendant sent Plaintiff a letter informing Plaintiff that a hold was placed "on a deposit(s)," but that her "funds [would] be available no later than seven business days after the date of deposit."

13. Subsequently, on or around June 8, 2026, Defendant sent Plaintiff another letter.

14. In this letter, Defendant informed Plaintiff that they "are closing [Plaintiff's] TD Bank deposit account(s) . . . effective immediately."

15. As a result of Defendant closing Plaintiff's Checking Account, Defendant mailed Plaintiff a check for what Defendant purports was the remaining balance on her Checking Account, a total of $430.09.

16. However, this remaining balance did not include the two check deposits that Defendant maintained on hold, which totaled $111,350.00.

17. When Plaintiff contacted Defendant to inquire about and demand the $111,350.00 that were deposited into Plaintiff's Checking Account but were not sent by Defendant via check, Defendant informed Plaintiff that her account had been closed.

18. Defendant further informed Plaintiff that the remaining balance in her Checking Account had already been sent to her.

19. Finally, Defendant informed Plaintiff that the deposits that were on hold totaling $111,350.00 had been debited from the Checking Account or returned.

20. At no point did Defendant provide Plaintiff with any explanation of where the $111,350.00 were debited to nor identifying to what entity they were returned to.

21. All that Defendant provided to Plaintiff was her Checking Account Statement from May 28, 2026, through June 25, 2026, which indicated that the $111,350.00 were withdrawn from

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21. Finally, Defendant informed Plaintiff that the deposits that were on hold totaling $111,350.00 had been debited from the Checking Account or returned.

20. At no point did Defendant provide Plaintiff with any explanation of where the $111,350.00 were debited to nor identifying to what entity they were returned to.

21. All that Defendant provided to Plaintiff was her Checking Account Statement from May 26, 2026, through June 25, 2026, which indicated that the $111,350.00 were withdrawn from the Checking Account on June 23, 2026, but were never paid to her. See Checking Account Statement, **Exhibit 2**.

22. Defendant directed Plaintiff to contact the payor of the two checks totaling $111,350.00, IOM Investments LLC, so that it could make the appropriate claim through its bank.

23. Subsequently, Plaintiff contacted Samir and urged him to contact IOM Investments LLC's bank to inquire about the two checks.

24. When Samir contacted IOM Investments LLC's bank, Citizens Bank, the bank explained that both checks had been cleared from IOM Investments LLC's account and that the $111,350.00 had not been returned to the account.

25. To date, neither Plaintiff nor IOM Investments LLC is in possession of the $111,350.00.

26. Defendant has refused to provide Plaintiff with an explanation or records of where the $111,350.00 are being held and refuses to pay Plaintiff this sum, or any part of it.

COUNT I – RECOVERY OF BANK DEPOSITS

27. Plaintiff repeats and realleges paragraphs 1 through 26, as if fully set forth herein.

28. Before June 8, 2026, in the course of Defendant's banking business, subject to Plaintiff's order, Plaintiff deposited with Defendant $111,350.00 in its Checking Account.

29. Subsequently, Plaintiff demanded that Defendant pay Plaintiff the $111,350.00 that were deposited into her Checking Account without ever being paid to Plaintiff.

30. Defendant, however, refused, and continues to refuse, to pay Plaintiff the $111,350.00 from its Checking Account, or any part of it, to Plaintiff's damage.

21. All that Defendant provided to Plaintiff was her Checking Account Statement from May 26, 2026, through June 25, 2026, which indicated that the $111,350.00 were withdrawn from the Checking Account on June 23, 2026, but were never paid to her. See Checking Account Statement, Exhibit 2.

22. Defendant directed Plaintiff to contact the payor of the two checks totaling $111,350.00, IOM Investments LLC, so that it could make the appropriate claim through its bank.

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COUNT I – RECOVERY OF BANK DEPOSITS

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29. Subsequently, Plaintiff demanded that Defendant pay Plaintiff the $111,350.00 that were deposited into her Checking Account without ever being paid to Plaintiff.

30. Defendant, however, refused, and continues to refuse, to pay Plaintiff the $111,350.00 from its Checking Account, or any part of it, to Plaintiff's damage.

WHEREFORE, Plaintiff Concepcion Castellanos de Renteria demands judgment against Defendant TD Bank, National Association for damages, in an amount to be determined at trial, costs, interest, and any other relief that the Court deems just and proper.

COUNT II – VIOLATION OF FLA. STAT. § 655.059(2)(a)

31. Plaintiff repeats and realleges paragraphs 1 through 26, as if fully set forth herein.

32. Defendant is a "financial institution," as defined in the Financial Institutions Codes. *See* § 655.005(1)(i), Fla. Stat.

33. A financial institution, like Defendant, must keep "correct and complete books of accounts." § 655.044(3), Fla. Stat.

34. An account holder, like Plaintiff, "has the right to inspect such books and records of a financial institution as pertain to her or his loans or accounts." § 655.059(2)(a), Fla. Stat.

35. On or around August 7, 2026, Defendant provided Plaintiff with her Checking Account Statement from May 26, 2026, through June 25, 2026. *See* **Ex. 2**.

36. However, Defendant has failed to give Plaintiff access to the complete books and records pertaining to her Checking Account.

WHEREFORE, Plaintiff Concepcion Castellanos de Renteria demands judgment against Defendant TD Bank, National Association ordering Defendant to produce the complete records of Plaintiff's Checking Account for inspection and copying, and granting any other relief that the Court deems just and proper.

COUNT III – DECLARATORY JUDGMENT

37. Plaintiff repeats and realleges paragraphs 1 through 26, as if fully set forth herein.

38. Pursuant to the Declaratory Judgment Act, "[i]n a case of actual controversy within its jurisdiction," the Court "may declare the rights and other legal relations of any interested party seeking such declaration, whether or not further relief is or could be sought." 28 U.S.C. § 2201(a).

39. Since 2019, Plaintiff maintained a bank account with Defendant, the Checking Account.

40. In June 2026, Defendant closed the Checking Account. At the time, the account had in it the $111,350.00 that had been deposited (the "Funds").

41. Subsequently to the bank account's closing, Plaintiff demanded Defendant pay her the Funds.

42. Defendant refused, and continues to refuse, to transfer the Funds to Plaintiff.

43. Declaratory relief is proper since Plaintiff is in doubt as to her rights with respect to the Checking Account. In particular, Plaintiff seeks a declaration the Funds that were in the Checking Account are the property of Plaintiff.

44. Defendant seems to claim some right over the Funds that is adverse and antagonistic to the rights of Plaintiff. Thus, there is a bona fide, actual, present practical need for the declaration.

45. The declaration requested does not amount to mere legal advice, but rather seeks to resolve a present controversy as to the ownership of the Funds.

WHEREFORE, Plaintiff Concepcion Castellanos de Renteria demands judgment against Defendant TD Bank, National Association declaring that the Funds that were in the Checking Account are the property of Plaintiff, and granting any other relief that the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands trial by jury of all issues so triable.

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Dated: October 06, 2026 Dated: October 06, 2026

Respectfully submitted,

By: /s/ Eduardo A. Maura

Respectfully submitted,
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